

the deposit to be acted upon, and will not be held guilty of negligence if the cheque be dishonoured (c).]

44. **Buying in.**—*Trustees of bankrupts* cannot *buy in* at the auction without the authority of the creditors, and where the assignees had put up the estate in two lots, and bought them in, and afterwards upon a re-sale there was a gain upon one lot and a loss upon the other, the balance upon the whole being in favour of the estate, Lord Eldon compelled the assignees to account for the diminution of price on the one lot, and would not allow them to set off the increase of price on the other lot (d).

It may be thought perhaps that as trustees in bankruptcy act under a statute they have less discretionary power than belongs to ordinary trustees; but in *Taylor v. Tabrum* (e) the same principle was applied to trustees in the proper sense of the word.

By 23 & 24 Vict. c. 145, as to trusts created [after 28th August, 1860, and prior to the repeal of the Act,] and where the settlement does not otherwise direct, trustees may sell at one time or at several times, and may *buy in*, or *rescind a private contract*, and resell without being responsible (f).

[By a later Act as to trusts or powers created since 31st December, 1881, where the settlement does not otherwise direct, trustees may “vary any contract for sale,” and may “buy in at any auction or rescind any contract for sale and resell without being answerable for any loss” (g).]

[*438] * 45. 37 & 38 Vict. c. 78.—By the Vendor and Purchaser Act, 1874 (a), it is enacted, by the *first* section, that as to any contract “made *after 31st December*, 1874, and subject to any stipulation to the contrary, *forty years* shall be substituted as the period of commencement of title which a purchaser may require in place of *sixty years*,

[(c) *Farrer v. Lacy Hartland & Co.*, 25 Ch. D. 636.]

(d) *Ex parte Lewis*, 1 Gl. & J. 69; and see *Ex parte Buxton*, Id. 355; *Ex parte Baldock*, 2 D. & C. 60; *Ex parte Gover*, 1 De G. 349; *Ex parte Tomkins*, Sugd. V. & P. 815, 14 ed.

(e) 6 Sim. 281; see *Ord v. Noel*, 5

Mad. 440; *Conolly v. Parsons*, 3 Ves. 628, note.

(f) 23 and 24 Vict. c. 145, ss. 1 and 2. [Since repealed: see *supra*, note (b), and p. 436, note (a).]

[(g) 44 and 45 Vict. c. 41, s. 35.]

(a) 37 & 38 Vict. c. 78.